

# PODCAST PRODUCTION AND DISTRIBUTION AGREEMENT

Agreement No. POD-2024-0312

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## PARTIES

**Effective Date:** February 1, 2024

**Network / Distributor:** Wavelength Audio Network, LLC, a Delaware limited liability company ("Network"), 488 Madison Avenue, 19th Floor, New York, NY 10022

**Creator / Producer:** Tidewater Audio Co., LLC, a California limited liability company ("Creator"), 1240 Abbot Kinney Blvd., Venice, CA 90291, owned and operated by Josephine Caldwell-Park ("Host")

**Host:** Josephine Caldwell-Park, individually and through Tidewater Audio Co., LLC ("Host")

## RECITALS

WHEREAS, Creator has developed and produces the original audio podcast series currently titled "SIGNAL & NOISE" (the "Podcast"), a weekly interview-format program covering the intersection of technology, media, and culture, with an established listener base of approximately 280,000 monthly downloads as of January 2024;

WHEREAS, Network operates a premium audio content distribution platform and podcast network with advertising sales capabilities, talent development resources, and distribution infrastructure;

WHEREAS, the parties desire to enter into an exclusive agreement pursuant to which Network shall distribute the Podcast and provide production support, and Creator shall deliver Episodes in accordance with the terms hereof;

## 1. DEFINITIONS

"Podcast" means the audio series titled "SIGNAL & NOISE," including all Episodes produced hereunder, all associated artwork, branding, show notes, social media content, and supplemental materials.

"Episode" means each individual installment of the Podcast, each of approximately forty-five (45) to seventy-five (75) minutes in duration, published on the Delivery Schedule set forth herein.

"Premium Episodes" means bonus content episodes released exclusively to subscribers of Network's paid tier ("Wavelength Premium"), not to exceed four (4) episodes per calendar month in addition to the regular Delivery Schedule.

"Delivery Schedule" means one (1) new Episode published weekly (52 episodes per Contract Year), with a permitted holiday hiatus of no more than two (2) consecutive weeks per calendar year.

"Advertising Revenue" means gross revenue actually received by Network from the sale of Host-read advertisement placements ("Host-Reads"), dynamically inserted programmatic advertisements ("DAI Ads"), and branded content integrations ("Branded Content") within the Podcast.

"Subscription Revenue" means gross revenue received by Network attributable to Wavelength Premium subscriber fees allocated to the Podcast, calculated pursuant to Network's standard allocation methodology (pro-rated by listening hours relative to total Wavelength Premium catalog listening hours per billing period).

## 2. GRANT OF RIGHTS

Creator hereby grants to Network, for the duration of the Term, the following exclusive rights with respect to the Podcast:

- Exclusive distribution rights worldwide via all audio podcast platforms and directories, including but not limited to Spotify, Apple Podcasts, Amazon Music, iHeartRadio, Pandora, YouTube Music, and all RSS-accessible platforms;
- Exclusive right to sell advertising inventory within the Podcast, including Host-Read spots, DAI placements, and Branded Content integrations;
- Non-exclusive right to distribute clips and excerpts of Episodes (not to exceed five (5) minutes per clip) across social media platforms for promotional purposes;
- Right to include the Podcast in Wavelength Premium subscription tier;
- Right to produce, market, and sell live event recordings of any Podcast live show produced during the Term, subject to separate live event agreements to be negotiated in good faith;
- Right to produce audio documentaries, compilation episodes, and "best of" packages using existing Episode content, subject to Creator's reasonable approval not to be unreasonably withheld.

The following rights are expressly reserved by Creator and not granted hereunder: (a) video podcast rights (except as specifically agreed in Section 2.2); (b) book publishing rights; (c) scripted audio drama adaptations; (d) merchandise rights beyond branded audio accessories; (e) international language adaptations; (f) any rights not specifically granted above.

2.2 Video Rights. Creator grants Network a right of first negotiation for video podcast rights, exercisable within sixty (60) days of Creator's written notice of intent to produce a video version. If the parties do not reach agreement within such period, Creator shall be free to negotiate with third parties, provided that Creator shall not enter into any agreement with a third party on terms more favorable than those last offered by Network without first offering Network the right to match such terms.

### 3. COMPENSATION AND REVENUE SHARE

#### 3.1 Guaranteed Minimum Fee

Network shall pay Creator a guaranteed minimum annual fee as follows:

| Contract Year         | Annual Guarantee | Per-Episode Minimum |
|-----------------------|------------------|---------------------|
| Year 1 (2024)         | \$312,000        | \$6,000/episode     |
| Year 2 (2025)         | \$364,000        | \$7,000/episode     |
| Year 3 (2026, option) | \$416,000        | \$8,000/episode     |

The Guaranteed Minimum shall be paid in equal bi-weekly installments throughout each Contract Year, commencing on the first day of each Contract Year. If total Revenue Share earned in any Contract Year exceeds the Guaranteed Minimum, Creator shall receive the higher amount; if Revenue Share falls short, the Guaranteed Minimum prevails and no recoupment applies to the subsequent year.

#### 3.2 Advertising Revenue Share

Creator shall receive the following share of Advertising Revenue:

| Revenue Category                      | Creator Share | Network Share |
|---------------------------------------|---------------|---------------|
| Host-Read Advertisements (≤3/episode) | 70%           | 30%           |

|                                         |     |     |
|-----------------------------------------|-----|-----|
| Host-Read Advertisements (>3/episode)   | 60% | 40% |
| DAI / Programmatic Ads                  | 50% | 50% |
| Branded Content Integrations            | 75% | 25% |
| Wavelength Premium Subscription Revenue | 35% | 65% |
| Live Event Recording Sales              | 60% | 40% |

Host-Read Advertisements shall be capped at four (4) per Episode without Creator's prior written consent. All advertising must be approved by Creator in advance; Creator retains the right to reject any advertisement that conflicts with the Podcast's editorial standards, including any advertisement from a direct competitor of an existing Podcast sponsor, any advertisement Creator reasonably determines to be misleading, or any advertisement in the categories listed in Exhibit B (Excluded Advertiser Categories).

### 3.3 Signing Bonus

Upon execution of this Agreement, Network shall pay Creator a one-time, non-recoupable signing bonus of Seventy-Five Thousand Dollars (USD \$75,000), payable within fifteen (15) business days of the later of: (a) full execution of this Agreement; or (b) delivery of the first two (2) Episodes hereunder.

### 3.4 Accounting and Audit

Network shall provide Creator with monthly revenue statements within twenty (20) days following the end of each calendar month, detailing all Advertising Revenue, Subscription Revenue allocations, download and stream counts by platform, and advertising CPM rates achieved. Creator shall have the right to audit Network's books pertaining to Podcast revenue upon thirty (30) days' written notice, at Creator's expense, no more than once per Contract Year. If an audit reveals an underpayment exceeding five percent (5%) of amounts due in any period, Network shall reimburse Creator's reasonable audit costs.

## 4. CONTENT STANDARDS AND EDITORIAL INDEPENDENCE

4.1 Creator retains full editorial independence and creative control over all Podcast content, subject only to Network's content standards policy (attached as Exhibit C). Network shall not require Creator to interview specific guests, adopt specific editorial positions, or alter the editorial voice or format of the Podcast without Creator's consent.

4.2 Restricted Content. Creator agrees not to publish through the Podcast: (a) content that constitutes defamation, hate speech, or incitement; (b) content that discloses material non-public information regarding publicly traded securities; (c) content that violates any third party's intellectual property rights. Creator shall comply with applicable FTC disclosure requirements for all sponsored content and shall clearly identify all paid advertisements as such.

4.3 Episode Removal. Network may request removal of a specific Episode only upon reasonable written notice identifying a material legal risk. Creator shall have ten (10) business days to address the identified concern before any removal. In the event of emergency removal due to imminent legal risk, Network shall immediately notify Creator and restore the Episode once the risk is resolved.

## 5. INTELLECTUAL PROPERTY

5.1 Creator Ownership. Creator retains all right, title, and interest in and to the Podcast, all Episodes, the 'SIGNAL & NOISE' name and brand, all associated artwork, and all underlying content. Network acquires no ownership interest in the Podcast or any Episode by virtue of this Agreement.

5.2 Back Catalog. The parties acknowledge that Creator independently owns and has previously published 187 Episodes of the Podcast prior to the Effective Date (the 'Back Catalog'). Network shall have the right to host and distribute the Back Catalog on Wavelength platform during the Term, subject to the revenue share set forth in Section 3.2, but shall acquire no ownership rights therein.

5.3 Post-Term. Upon expiration or termination of this Agreement, all distribution rights revert to Creator immediately. Network shall remove the Podcast from all Wavelength-controlled platforms within thirty (30) days of termination, and shall transfer all RSS subscriber data, listener analytics, and download history to Creator within fifteen (15) days.

## 6. TERM AND OPTIONS

**Initial Term:** Two (2) Contract Years commencing February 1, 2024 and ending January 31, 2026.

**Year 3 Option:** Network holds an option for a third Contract Year (February 1, 2026 – January 31, 2027), exercisable by written notice no later than October 31, 2025. Time is of the essence.

**Termination for Convenience:** Either party may terminate after the first Contract Year upon one hundred twenty (120) days' written notice, subject to Creator's retention of all amounts paid through the termination date. No clawback of Guaranteed Minimum or signing bonus applies.

**Performance Trigger:** If average monthly downloads fall below 150,000 for any consecutive three-month period during the Term (measured by Network's platform analytics plus verified third-party platform data), either party may elect to renegotiate compensation in good faith within sixty (60) days before exercising termination rights.

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### FOR WAVELENGTH AUDIO NETWORK, LLC:

Signature: \_\_\_\_\_

**Printed Name:** Petra Voss-Okonkwo

**Title:** Chief Content Officer

**Date:** \_\_\_\_\_, 2024

### FOR TIDEWATER AUDIO CO., LLC (ON BEHALF OF JOSEPHINE CALDWELL-PARK):

Signature: \_\_\_\_\_

**Printed Name:** Josephine Caldwell-Park

**Title:** Founder and Host

**Date:** \_\_\_\_\_, 2024